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High Court of Uttarakhand at Nainital v. Deepali Sharma -Registrar General Of High Court - Disciplinary Action Against Judicial Officer

Constitution of India - Article 235 - The Registrar General of the High Court has absolutely no authority either in terms of the constitutional scheme or the statutory rules governing the service conditions of the judicial officers, to suo-moto initiate disciplinary action against any judicial officer. He can only act on behalf of Hon'ble the Chief Justice and the Judges of the High Court - The power under Article 235 of the Constitution has been expressly vested in the "High Court", which necessarily shall be comprising the Hon'ble Chief Justice and the companion Judges. [Context: The Supreme Court considered an appeal by the High Court of Uttarakhand challenging a Division Bench judgment that had set aside disciplinary proceedings against Judicial Officer and ordered her reinstatement. It held that the very initiation of the departmental inquiry was void because it was commenced by the Registrar General without any shown authorization or order from the Chief Justice or a committee of Judges, contrary to Article 235.]

PDF: High Court of Uttarakhand at Nainital v. Deepali Sharma

-Registrar General Of High Court - Disciplinary Action Against
Judicial Officer

Vijayakumar v. State of Tamil Nadu 2026 INSC 525 - Video Recording - Naked State Of Victim - Criminal Intimidation

Indian Penal Code 1860 - Section 506 - The act of video-recording the victim in a naked state while she was taking a bath and the threat to upload it on digital social media can be construed to be an act amounting to a threat to impute unchastity within the meaning of Part II of Section 506 IPC. (Para 41) Any reprehensible act which seeks to lower or tarnish the dignity of a woman relating to her sexual autonomy and identity, which she seeks to jealously guard, can be said to be an assault on her chastity amounting to imputing unchastity to the woman. (Para 39)

Indian Penal Code 1860 - Section 503 - The mere threat that the accused would upload the video of the prosecutrix in a nude state on social media is quite a distressing and frightening proposition for a woman. If acute shame, distress, and embarrassment are visited upon a woman due to fear that her nude picture would be displayed to the public, such an act would certainly be a cause for alarm, which is what Section 503 IPC speaks of and to the extend, the ingredient for the offence under the first part of Section 503 IPC is clearly made out. (Para 50)

Indian Penal Code 1860 - Section 506 - Chastity - Chastity has to be determined not only by societal values but also based on her individual sensitivities as regards her sexuality. Chastity of a woman should be understood as a person's control over their own sexual choices, in light of freedom of self-determination. It is the ability to determine one's own sexual choices and one's own sexual relationships without interference from another. It would encompass the ability to freely decide who to establish a sexual relationship with on their own terms without any undue pressure or interference. 'Unchastity' should then be read also as an action that interferes with the privacy and autonomy of one's own consensual sexual activities. Any such interference would be a violation of the constitutional understanding of both privacy and dignity under Article 21. Any unwarranted interference with such sexual autonomy can be said to impute unchastity, insofar as it prevents the affected person from controlling the information and choices that she chooses to make with respect to her sexual life. Such a reading protects the dignity of all persons, regardless of their sexual history. (Para 36-37)

Indian Evidence Act 1872 - Section 106 - When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. In our opinion, this knowledge,

however, need not be confined to acts happening within a certain physical space; it can also extend to interpersonal relationships which form an intangible space formed by the relationship and any incident happening within that interpersonal realm will be known only to the individuals forming the space. Consequently, it will be within the especial knowledge of only those involved. It can also extend to interpersonal relationships where only the accused and the victim would be privy to any incident arising out of or within their intimate relationship, for only they would be in a position to explain or state what transpired between them in their private moments. (Para 62-63)

Criminal Trial - Recovery of an article of crime is not sine qua non for conviction of an offence, though production of the same would strengthen the prosecution case. Non-recovery of the same will not be fatal to the prosecution case if there are other credible evidence to prove the existence of such object of crime/material, and it would depend on the peculiar facts obtaining in the case. (Para 53)

Indian Evidence Act 1872 - Section 140,145,146,155 - Cross-examination under Section 145 of the Evidence Act is not the only enabling provision to impeach the credibility of a

witness. By invoking Sections 140 (witness of character), 146 (lawful questions in cross-examination), and 155 (impeaching credit of witness) of the Evidence Act, the credibility of the prosecutrix could have been impeached. (Para 77)

Evidence Law - Even the reply made to the suggestions put forth by the defence has evidentiary value. (Para 74)

Legal Maxim - The maxim falsus in uno falsus in omnibus is not a sound rule, observing that hardly one comes across a witness whose evidence does not contain a grain of untruth or at any rate exaggeration, embroideries, or embellishments. (Para 58)

PDF: [Vijayakumar v. State of Tamil Nadu 2026 INSC 525 - Video Recording - Naked State Of Victim - Criminal Intimidation](#)

Roshan Lal v. State of Haryana 2026 INSC 524 - IPC - Attempt To Murder - Gravity Of Injury

Indian Penal Code 1860 - Section 307 - The gravity of the injury by itself cannot be determinative of the offence under Section 307 IPC unless the prosecution is able to establish the requisite mens rea contemplated under the provision. The intention to commit murder cannot be presumed merely because the injuries were ultimately opined to be dangerous to life. (Para 35) The words 'such intention' found in Section 307 IPC, refer to the intention referred to in Section 300 IPC. It means: (i) intention to cause death; (ii) intention to cause such bodily injury, which the offender knows is likely to cause death; (iii) intention to cause such bodily injury, which is sufficient in the ordinary course of nature to cause death - The essential ingredient of the offence of attempt to murder is the intention to cause death. Such intention exists prior to the actual attempt and must be established independently of the act itself or the actus reus. Once the requisite intention to commit murder is proved, the eventual outcome of the attempt becomes irrelevant, unless the attempt culminates in death, in which case the offence would fall within Section 300 IPC. In the absence of proof of intention, a conviction under this provision cannot be sustained. Intention, however, can be inferred

from surrounding circumstances, such as the type of weapon employed, the words spoken by the accused at the time of the incident, the motive behind the act, the parts of the body targeted, the nature and extent of the injuries inflicted, as well as the force and manner in which the blows were delivered.(Para 31-32) - The gravity of the injury by itself cannot be determinative of the offence under Section 307 IPC unless the prosecution is able to establish the requisite mens rea contemplated under the provision. The intention to commit murder cannot be presumed merely because the injuries were ultimately opined to be dangerous to life. (Para 35)

PDF: Roshan Lal v. State of Haryana 2026 INSC 524 - IPC - Attempt To Murder - Gravity Of Injury

Mohseen v. State of Uttar Pradesh 2026 INSC 526 -CrPC - Bail - Reasoned Order

Code of Criminal Procedure 1973 - Section 439 - While there is no absolute bar against a High Court granting bail to an accused whose bail was previously cancelled by this Court, the grant of bail must be supported by reasons demonstrating either a change in circumstances or the existence of fresh grounds not considered by this Court at the time of cancellation. The conduct of an accused after the cancellation of bail is another crucial factor in determining whether bail ought to be granted afresh. (Para 24-25) bail orders must reveal the factors that weighed with the Court for granting relief, and that a mere recitation of "the facts and circumstances of the case" without more does not constitute a reasoned order. (Para 33)

Indian Penal Code 1860 - Section 307 IPC - An act with intent or knowledge that it can cause death. If an accused fires a weapon at victim with the intent to kill and or the knowledge that it can kill, but the victims escape by chance, the commission of the offence under Section 307 IPC is made out (Para 29)

PDF: Mohseen v. State of Uttar Pradesh 2026 INSC 526 -CrPC -

Bail - Reasoned Order

**Bhagat Singh v. State of Uttar Pradesh 2026 INSC 527 -
Inquest Report - Non- Mention Of Accused**

**Bharatiya Nagarik Suraksha Sanhita, 2023 -Section 194 :
Code of Criminal Procedure, 1973 - Section 174- Criminal
Trial** - A preliminary enquiry of a limited and specific character
confined to ascertaining the apparent cause of death and not to
record a detailed account of the incident or the names of the
accused persons who could have caused the death -
Non-mentioning of the author of the crime or the person who had
caused the death in the inquest report cannot, by itself, be a
reason to doubt the involvement of the accused, who may be
subsequently named. (Para 12-14)

**PDF: Bhagat Singh v. State of Uttar Pradesh 2026 INSC 527 -
Inquest Report - Non- Mention Of Accused**

Papan Sarkar @ Pranab v. State of West Bengal 2026 INSC 528 - S.27 Evidence Act- Concealment - Exculpatory Statement

Indian Evidence Act 1872 - Section 27 - Concealment and its knowledge, revealed from the statement of the accused, is the crucial ingredient of Section 27 which can lead to that being used in a criminal trial, any other confession to a police officer being excluded as self-incriminating. (Para 12)

Evidence Law - The exculpatory statement made absolving himself and accusing the co-accused, by its very nature is unreliable. It cannot be put against the other accused, for no cross examination being provided to them, of the one who made that statement. It cannot also incriminate the person who made the statement since there is no element of confession in the recital as spoken of by three witnesses, as against one. (Para 10)

Indian Evidence Act 1872 - Section 106 - What assumes significance in placing reliance on the last seen together theory is the gap between the time they were seen together and the death having occurred. The proximity of the death having occurred within a short time after the accused and the deceased were seen together is most relevant, for the said fact to be taken as an

incriminating circumstance against the accused. When the time gap is large then there could be intervening circumstances, which snaps the link and prevents an adverse inference against the accused merely for the reason that the accused does not put forth an explanation as to when he parted company with the deceased. (Para 7)

PDF: Papan Sarkar @ Pranab v. State of West Bengal 2026 INSC 528 - S.27 Evidence Act- Concealment - Exculpatory Statement

Mallika v. R. Nallathambi 2026 INSC 529 - CPC - Evidence - Revenue Records

Code of Civil Procedure, 1908 - Order XLI Rule 31 - The First Appellate Court, being the final court on facts, is duty bound to independently assess the entire evidence on record and assign reasons while reversing the judgment of the Trial Court. The requirement of Order XLI Rule 31 of the CPC is one of substantial compliance and not one of mere technical formality. The substance of the judgment and the manner in which the appellate court has dealt with the controversy are of greater significance than the form in which points are framed. (Para 40-41)

Evidence - Civil Suit - Where a party possessing special knowledge of facts fails to enter the witness box, an adverse inference may legitimately be drawn against such party. (Para 48)

Revenue Records - Mutation entries alone do not create or transfer ownership rights. However, when such revenue records continue for many years, are supported by registered sale transactions and remain unchallenged for a long period, they become relevant factors while considering possession and the

conduct of the parties. (Para 53)

Sarala Devi T.C. v. State of Kerala -S.409 IPC - Entrustment - Handwriting Evidence

Indian Evidence Act 1872 - Section 47 - Relevancy of the opinion of a person who though is not an expert as per Section 45 of the evidence Act - His testimony becomes relevant by virtue of the fact that he is acquainted with the handwriting of the person alleged to have authored the document. A Person may be acquainted with the handwriting of another person mainly in three ways, viz 1. When he has seen that person write; 2. When he has received communication purporting to be written by that person in answer to documents purporting to be written by himself, although neither of them saw each other write; and 3. In the ordinary course of business documents purporting to be written by that person have been habitually submitted to him. 14. However, such kind of non-expert evidence can be considered to be the better than expert evidence, if the person deposing to it is disinterested. Moreover, even if the witnesses assert firmly or otherwise, his testimony is merely an opinion based on the comparison in the mind between the disputed writing and an example formed by his previous experience. As such, the opinion of such person under section 47 is not conclusive by itself and the court is to determine regarding the reliability of the said evidence

after considering cumulatively the other strong circumstances to prove the execution of the disputed document. (Para 13-14)

Indian Penal Code 1860 - Section 409 -The offence under Section 409 IPC necessarily postulates proof of entrustment coupled with dishonest misappropriation. Entrustment is not a matter of presumption, but a foundational jurisdictional fact which the prosecution is bound to establish affirmatively and beyond reasonable doubt. Mere absence of corresponding entries in the cash book or day book of the Society cannot by itself establish misappropriation unless lawful entrustment is first proved through cogent and reliable evidence, which in our considered view was not sufficiently established. Once the prosecution failed to conclusively establish the authenticity of the disputed documents for the purpose of forgery, the same documents could not have been treated as unimpeachable evidence of entrustment for sustaining conviction under Section 409 IPC and the provisions of PC Act by itself. (Para 16-17)

Evidence - A 'Interested witness' is one who derives some benefit from the result of the litigation in the decree in a civil case or in seeing an accused person punished.- Though there is no invariable rule that interested evidence can never form the basis

of conviction unless corroborated to a material extent in material particulars by independent evidence, however it is necessary that evidence of interested witnesses should be subjected to careful scrutiny and examined with caution. If upon such scrutiny, the testimony of such witness is found to be intrinsically reliable or so probable that by itself it is sufficient in the circumstances of the case to base a conviction, the courts can rely on the same without any hesitation. (Para 11)

Criminal Trial - Suspicion, however grave, cannot substitute the place of proof. As such, Criminal Courts are duty bound to ensure that conviction follows only upon evidence which inspires confidence beyond reasonable doubt. The burden always rests upon the prosecution and never shifts upon the accused to establish innocence. While sympathy cannot substitute legal proof, the prolonged pendency of criminal proceedings founded upon doubtful evidence reinforces the necessity of strict adherence to settled principles of criminal jurisprudence. (Para 20)

PDF: Sarala Devi T.C. v. State of Kerala -IPC - Handwriting Evidence

Tasleem Ahmed v. State Govt. of NCT of Delhi - S.43D(5) UAPA - Larger Bench Reference

Constitution of India - Article 21 - UAPA - Section 43D(5) - Referred to Larger Bench to settle the correct approach to bail under special statutes where Article 21, prolonged incarceration and statutory restrictions intersect - Article 21 survives Section 43D(5). How Article 21 is to be applied in a statutory field where Parliament has consciously imposed restrictions on bail in respect of offences alleged to affect the security of the State and the stability of civic life. [**Context:** The Supreme Court notes a perceived divergence in how different benches are applying the three-Judge Bench decision in K.A. Najeeb to bail under the UAPA, especially where prolonged incarceration and trial delay are invoked against the statutory bar in Section 43D(5). It holds that K.A. Najeeb remains authoritative, that Gulfisha Fatima treats it as a principled safeguard against unconscionable detention rather than a mechanical time-based formula, and that a coordinate bench cannot effectively unsettle another coordinate bench's application of a larger bench decision without reference]

Precedent -A coordinate Bench cannot, by strong observations, effectively unsettle the ratio of an earlier coordinate Bench while

continuing to sit in equal strength. A coordinate Bench may distinguish an earlier decision, may explain its own understanding of the law, and may, in an appropriate case, express doubt. But where the doubt goes to the root of the legal principle applied, the matter cannot be left at the stage of criticism. A doubt expressed in emphatic terms is still a doubt; it is not a declaration of law. Unless resolved by a Bench of appropriate strength, it only introduces uncertainty in the administration of justice. A Bench of equal strength cannot achieve, by language of reservation, what it cannot achieve by declaration of law. If the earlier view is thought to be inconsistent with a larger Bench decision, the proper course is reference. That course protects not merely the judgment doubted, but the authority of this Court itself. In matters touching personal liberty, national security, statutory restrictions on bail and prolonged incarceration, uncertainty in the law is itself an institutional cost. (Para 17-18) It is possible for Benches of this Court to differ in emphasis. It is equally possible that two decisions may proceed on the same constitutional foundation but apply it differently to distinct factual settings. But where the difference is projected as one concerning the binding force of a three-Judge Bench decision, and where such difference is likely to affect pending trials under special statutes across the country, the matter cannot

be left to uncertain application by courts. (Para 19)

PDF: [Tasleem Ahmed v. State Govt. of NCT of Delhi - S.43D\(5\)](#)

[UAPA - Larger Bench Reference](#)